

This Instrument Prepared by and Return to:
W. James Gooding III
Gilligan, Gooding & Franjola, P.A.
1531 SE 36th Avenue
Ocala, FL 34471

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**THIRD AMENDMENT TO DECLARATION OF COVENANTS
AND RESTRICTIONS FOR AVONLEA**

THIS THIRD AMENDMENT TO DECLARATION OF COVENANTS AND RESTRICTIONS FOR AVONLEA (the "Third Amendment") is made as of March 23, 2017, by Avonlea, LLC, a Florida limited liability ("Declarant"), as the holder of in excess of seventy-five percent (75%) of the total votes of all Members¹ and as the Declarant.

WHEREAS:

- A. On or about June 20, 2007, Declarant caused to be recorded in OR Book 4822, Page 759, Public Records of Marion County, Florida, a "Declaration of Covenants and Restrictions for Avonlea" (the "Original Declaration").
- B. On or about September 10, 2008, Declarant caused to be recorded in OR Book 5094, Page 483, Public Records of Marion County, Florida, a "First Amendment to Declaration of Covenants and Restrictions for Avonlea" (the "First Amendment") pursuant to which the Original Declaration was amended as set forth therein. The First Amendment was re-recorded in OR Book 5097, Page 1742, Public Records of Marion County, Florida, for the purposes set forth in footnote 1 of the re-recorded instrument.
- C. On or about March 13, 2017, Declarant caused to be recorded in OR Book 6545, Page 438, Public Records of Marion County, Florida, a "Second Amendment to Declaration of Covenants and Restrictions for Avonlea" (the "Second Amendment") pursuant to which the Original Declaration was amended as set forth therein. The Original Declaration, as amended by the First Amendment and the Second Amendment, is hereafter referred to as the "Current Declaration."
- D. Declarant is the Declarant under the Declaration, and the holder of in excess of 75% of the total votes of all Members, and therefore is entitled to amend this Declaration pursuant to paragraph 7.1.1 of the Current Declaration.
- E. Declarant desires to further amend the Current Declaration to correct a scrivener's error that was created by the First Amendment in paragraph 5.5.1.c. of the Current Declaration.

NOW, THEREFORE, in consideration of the foregoing, which are incorporated herein by reference, the Current Declaration is amended as follows:

- 1. **Dwelling Units; Generally.** Paragraph 5.5.1 of the Current Declaration is amended to read as follows:

¹ Terms capitalized herein and not otherwise defined herein have the same meaning herein as in the Current Declaration.

5.5.1. Generally.

- a. All Dwelling Units on the Lot must be of conventional construction, and built on site.
- b. Mobile homes, modular homes, or homes moved from any other location are prohibited.
- c. Any Dwelling Unit erected on a Lot shall contain at least 2,300 square feet of living space. Living space shall mean heated and cooled space under roof exclusive of garages, whether attached or detached, heated or cooled, and exclusive of porches, decks, pools, breezeways, basements, attics, and accessory structures. In computing living space, the square footage of any detached structure shall not be included.
- d. The main roof shall have not less than a 6/12 pitch and the fascia shall have a minimum width of 6 inches.
- e. All roofs shall be covered with architectural shingles, tile roofing materials or metal shingles.
- f. All roof venting shall be on the rear of the main ridge of the roof.

2. **Effect on Current Declarations.** Except as expressly set forth herein, the Current Declaration, is not amended or modified. All references herein, or in the Current Declarations to "this Declaration," "this Agreement," or similar terms shall be deemed to refer to the Current Declaration as amended thereby.

IN WITNESS WHEREOF, the undersigned has executed this Third Amendment effective the day and year first above written.

Avonlea, LLC, a Florida limited liability company

By: Harvey Vandeven
Harvey Vandeven, as Manager

Jan Jockell
Witness

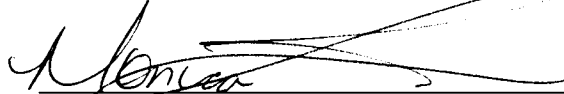
Jan Jockell
Print Witness Name

Lisa Tuman
Witness

Lisa Tuman
Print Witness Name

STATE OF FLORIDA
COUNTY OF MARION

The foregoing instrument was acknowledged before me this March 23, 2017, by Harvey Vandeven, as Manager of Avonlea, LLC, a Florida limited liability company, on behalf of the Company.


Notary Public, State of Florida
Name: Monica Jones
(Please print or type)

Commission Number: FF171406
Commission Expires: 2/5/2019



MONICA JONES
NOTARY PUBLIC
STATE OF FLORIDA
Comm# FF171406
Expires 2/5/2019

Notary: Check one of the following:

- ☒ Personally known OR
☐ Produced Identification (if this box is checked, fill in blank below).
Type of Identification Produced: _____

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